

Book

Policy Manual

Section

8000 Operations

Title

PROTECTIVE FACIAL COVERINGS DURING PANDEMIC/EPIDEMIC EVENTS

Code

po8450.01

Status

Active

Adopted

August 25, 2021

8450.01 - PROTECTIVE FACIAL COVERINGS DURING PANDEMIC/EPIDEMIC EVENTS

During times of elevated communicable disease community spread (pandemic or epidemic), the Superintendent will issue periodic guidance, including but not limited to through Board of Education plans/resolution(s) in alignment with public health officials and/or in accordance with government edicts and including any Pandemic Plan developed by the District's Pandemic Response Team under Policy 8420.01.

School settings can be a source of community spread. Wearing face masks/coverings is especially important during these times and can help mitigate the risk of exposure from person to person.

As such, during times of elevated communicable disease community spread, the Superintendent may activate this policy, in whole or in part, by notifying the school community, requiring some or all school staff, volunteers, and visitors (including vendors) to wear appropriate face masks/coverings on school grounds and/or at school events/activities, unless an exception to the use of masks/face coverings applies.

Face masks/shields will be provided by the District to employees. Alternatively, employees may elect to wear their own face coverings if they meet the requirements of this policy as well as any requirements issued by State or local health departments.

In addition, the Board and/or the Superintendent may require that some or all students in kindergarten and higher shall wear a face mask unless an exception to the use of masks/face coverings applies. Efforts will be made to reduce any social stigma for a student who, for medical or developmental reasons, cannot and should not wear a mask.

If face masks/coverings are required, and no exception is applicable, students shall be subject to disciplinary action in accordance with the Student Code of Conduct/Student Discipline Code, and in accordance with policies of the Board and/or may be reassigned by the Superintendent to an online/virtual learning environment if the Superintendent determines that reassignment is necessary to protect the health and safety of the student or others.

During times of elevated communicable disease community spread as determined by the Board and/or Superintendent in consultation with health professionals; including but not limited to pursuant to any order issued by the Center for Disease Control (“CDC”), Ohio Department of Education and/or Department of Transportation, Ohio Department of Health or the Governor, local board of health, and any other order issued by authorized government officials; all students are required to wear masks while being transported on District school buses or other modes of school transportation; and while waiting for a school bus outdoors where there is sustained close contact with individuals who are not members of their household.

Use of Mask/Face Covering

Face coverings/masks should:

- A. fully cover the mouth, nose, and chin;
- B. fit snugly against the side of the face so there are no gaps;
- C. not create difficulty breathing while worn; and
- D. be held securely through either a tie, elastic, etc. to prevent slipping.

Facial masks/coverings generally should not include surgical masks or respirators unless medically indicated (as those should be reserved for healthcare workers) or masks designed to be worn for costume purposes.

All employee facial masks/coverings shall meet the requirements of the appropriate dress/staff grooming policies (Policy 3216/4216). All student facial masks/coverings shall meet the requirements of the appropriate Student Code of Conduct/Student Discipline Code.

Any person may be required to temporarily remove a face mask or covering when instructed to do so for identification or security purposes. Failure to comply with such a request violates this policy and may lead to disciplinary or other action.

Exceptions to the use of masks/face coverings include when:

- A. facial masks/coverings in the school setting are prohibited by law or regulation;
- B. facial masks/coverings are in violation of documented industry standards;
- C. facial masks/coverings are not advisable due to a certified medical condition or a developmental delay or disability that contraindicates the wearing of a facial mask/covering;
- D. facial masks/coverings are in violation of the school's documented safety policies;
- E. facial masks/coverings are not required when a staff member or volunteer works alone in an assigned work area;
- F. there is a functional (practical) reason for a staff member or volunteer not to wear a facial mask/covering in the workplace, as determined by the Superintendent;
- G. settings where masks might present a safety hazard (i.e. science labs);
- H. the individual is communicating with students who are hearing impaired or otherwise disabled, where an accommodation is appropriate or necessary;
- I. the individual is actively participating in outdoor play, recess and/or physical activity, except where the outdoor play, recess and/or physical activity involves sustained close contact;
- J. the individual is seated and actively consuming food or beverage;
- K. students are able to maintain a distance of six (6) feet or more and a mask break is deemed necessary by the educator supervising the educational setting;
- L. an established sincerely held religious requirement exists that does not permit a facial covering.

If any exceptions are made to the requirement for facial coverings, the request for such exception must be submitted in writing to the individual's supervisor, for staff, or to the building principal, for students, with appropriate documentation (e.g., documentation from a medical provider) provided. A decision on the request will be provided in writing.

Use of Face Shields

Face shields that wrap around the face and extend below the chin may be permitted as an alternative to face masks/coverings with permission of the Superintendent as the Board

recognizes that face shields may be useful in some situations, including:

- A. when interacting with students, such as those with disabilities, where communication could be impacted;
- B. when interacting with English-language learners or when teaching a foreign language;
- C. settings where masks might present a safety hazard (i.e. science labs); or
- D. for individuals who are unable to wear a face covering consistent with the exceptions included herein.

If employees receive approval from the District administration after discussing their request not to wear a face mask/covering/shield due to a physical, mental, or developmental health condition, and/or if wearing a mask/covering/shield would lead to a medical emergency or would introduce significant safety concerns, the District administration may also discuss other possible accommodations for the staff member. Such discussion shall follow Board policies and guidelines under the ADA.

School nurses or staff who care for individuals with symptoms consistent with those of a communicable disease must use appropriate personal protective equipment (PPE), provided by the school, in accordance with OSHA standards.

When facial masks/coverings are required by the Board, and no exception has been applied, staff members who violate this policy shall be subject to disciplinary action in accordance with the policies of the Board.

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R.C. 3313.20, 3313.60, 3313.661, 3313.665